

		time. Defendant’s motion for issues and evidentiary sanctions is denied. Defendant’s motion for monetary sanctions is granted. Plaintiff Norris is ordered to pay monetary sanctions in the total amount of \$3,000 to Law Offices of Cullins & Grandy LLP within 30 days. Defendant shall give notice.
58	<i>Place vs. Sustayta</i>	The Court grants Defendant Mario R. Sustayta’s Motion for judgment on the pleadings as to the second through eighth causes of action in Plaintiff Dana M. Place’s Complaint. Plaintiff has 30 days leave to amend the second, third, fourth, fifth, and eighth causes of action only. <u>Legal Standard</u> A non-statutory motion for judgment on the pleadings “is, in effect, a general demurrer, the same rules apply.” (<i>Sofias v. Bank of America</i> (1985) 172 Cal.App.3d 583, 586.) The non-statutory motion may be brought on two grounds: that the court lacks subject matter jurisdiction, or that the complaint does not state facts sufficient to constitute a cause of action. (<i>Korchemny v. Piterman</i> (2021) 68 Cal.App.5th 1032, 1055.) The second of these grounds—the only ground invoked here—is identical to the corresponding statutory ground under Code of Civil Procedure section 438, subdivision (c)(1)(B)(ii). (<i>Ibid.</i>; see Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) To prevail, a defendant must show that the complaint fails to state a cause of action. (<i>Ibid.</i>)